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Teona Pipia SB 343337  
2 Martin Weingarten SB 201906  
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6 *Attorneys for Plaintiff: Cavalry SPV I, LLC*

Electronically FILED by  
Superior Court of California,  
County of Los Angeles  
4/11/2024 1:44 PM  
David W. Slayton,  
Executive Officer/Clerk of Court,  
By H. Martinez, Deputy Clerk

7 SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES  
8 LIMITED CIVIL JURISDICTION

9 Cavalry SPV I, LLC,

Case No. 24CHLC00298

10 Plaintiff,

**DECLARATION IN SUPPORT OF  
APPLICATION FOR ENTRY OF  
DEFAULT JUDGMENT PURSUANT TO  
CIVIL CODE § 1788.60(a)**

11 vs.

12 AGUSTIN GUEVARA, an individual, et al.,

13 Defendant.

14  
15 I, the undersigned, declare as follows:

16 1. I am an employee of Cavalry Portfolio Services, LLC (hereinafter, "CPS"), which  
17 performs collection services for Cavalry SPV I, LLC (Hereinafter "Plaintiff"), and am a qualified  
18 witness. I am a competent person over eighteen years of age. Based on my review of the account  
19 records maintained on Plaintiff's behalf, I have personal knowledge and make the statements  
20 herein. Plaintiff is the current owner of, and/or successor to, the obligation sued upon, and was  
21 assigned all the rights, title and interest to Defendant's CITIBANK, N.A. account, ending in  
22 XXXXXXXXXXXXX5117 (hereinafter, the "Account"). I have access to and have reviewed the  
23 records pertaining to the Account and am authorized to make this declaration on Plaintiff's  
24 behalf.

25 2. Plaintiff purchases portfolios of delinquent accounts from either the original  
26 creditor or a subsequent purchaser of the account. As part of its operations, CPS, on behalf of  
27 Plaintiff, operates and maintains computer systems, into which CPS, on behalf of Plaintiff,  
28 integrates electronic records and information received from the seller.

1           3.     I am familiar with the manner and method by which CPS, on behalf of Plaintiff,  
2 creates and maintains its normal documents and records. The records are kept in the normal  
3 course of business. CPS, on behalf of Plaintiff, maintains computerized account records,  
4 including the account information that was provided to Plaintiff by CITIBANK, N.A.. The  
5 computerized account records include the balance at the time of sale and the date of sale of the  
6 subject account. The records are kept in the ordinary course of business by representatives of  
7 CPS, on behalf of Plaintiff, who are charged with the duty to accurately record any business act,  
8 condition or event on the computer with entries made at or near the time of any such occurrence

9           4.     On or about July 21, 2023, Plaintiff became the successor in interest to this  
10 Account. CPS on behalf of Plaintiff acquired and incorporated the attached account records into  
11 its business records, which are not modified or altered, as a result of Plaintiff's purchase of the  
12 Account. These records are kept in the regular course of business on behalf of Plaintiff, and  
13 along with the electronic records provided at purchase, are business records maintained by CPS  
14 on behalf of Plaintiff for this Account.

15           5.     Federal law required the original creditor to furnish Defendant with periodic  
16 statements.

17           6.     The accuracy of such records is relied upon by Plaintiff in purchasing and by CPS  
18 on behalf of Plaintiff in collecting this Account. These records are relied upon in Plaintiff's and  
19 CPS's regular course of business.

20           7.     This Account was purchased on or after January 1, 2014

21           8.     In accordance with California Civil Code section 1788.58(a)(3-8), CPS records  
22 maintained on behalf of Plaintiff show the following relevant information concerning the  
23 Account.

- 24           a.     Plaintiff is the sole owner of the Account.
- 25           b.     The Account was opened on May 28, 2022 and charged off on June 13, 2023 with  
26 a balance of \$7,591.45
- 27           c.     CPS records maintained on behalf of Plaintiff show that the balance of \$7,591.45  
28 remains due and owing as of February 2, 2024. Plaintiff is not seeking to recover  
any post-charge off interest and/or fees that may have been imposed by the charge  
off creditor or subsequent purchasers of the debt and is seeking to recover only

1 that portion of the charge off balance that remains due and owing as of February  
2 2, 2024.

- 3 d. The last payment posted to the Account on October 31, 2022.
- 4 e. The charge-off creditor name and address at the time of charge off: CITIBANK,  
5 N.A. PO BOX 78019 PHOENIX AZ 85062-8019.
- 6 f. The charge-off Account number associated with the debt at time of charge off was  
7 Account No. ending in XXXXXXXXXXXX5117.
- 8 g. Defendant's name and last known address as it appeared in the charge off  
9 creditor's records: AGUSTIN GUEVARA 1228 N BERENDO ST APT D, LOS  
10 ANGELES, CA 90029-1641.
- 11 h. The names and addresses of all persons or entities that purchased the debt after  
12 charge off, including the plaintiff debt buyer, are as follows:
- 13 i. CAVALRY SPV I, LLC, 1 American Lane Suite 220, Greenwich, CT 06831.  
14 Prior to January 1, 2022, the address for CAVALRY SPV I, LLC was: 500  
15 Summit Lake Drive, Suite 400, Valhalla, NY 10595.

16 9. CPS records maintained on behalf of Plaintiff state that Plaintiff, CPS or its  
17 agents made demand for payment of the balance herein prior to making this declaration and  
18 Defendant(s) failed to make full payment of the amount owed on the Account.

19 10. Attached hereto as Exhibits A, B, and C are the account records I have reviewed  
20 in executing the declaration that relate to the Account and/or payment(s) received.

21 Exhibit A. Seller Data document and Chain of Title - establishing the facts  
22 required under Civil Code sections 1788.58(a)(3), (a)(7), and (a)(8).

23 Exhibit B. Account Statements and/or Account records including, but not limited  
24 to, the most recent monthly statement recording a purchase transaction, last payment, or  
25 balance transfer - establishing the fact required under Civil Code section 1788.52(b) and  
26 1788.58(a)(5).

27 Exhibit C. Account Statement - establishing the facts required under Civil Code  
28 sections 1788.58(a)(4), and (a)(6).

11. The documents attached hereto are true and correct copies of documents provided  
to CPS on behalf of Plaintiff, by the original creditor, being a reproduction of the records on file  
on behalf of Plaintiff based upon my review, except to the extent that confidential and privileged

1 information and/or personal identifying information is omitted or redacted as required by local  
2 rules, and applicable state and federal laws.

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1           12.     If called upon to testify as a witness thereon, I could and would competently  
2 testify as to all the facts stated herein.

3 I declare under penalty of perjury under the laws of the State of California that the foregoing is  
4 true and correct.

5           Executed this 8 day of February, <sup>2024</sup> at Greenwich, CT.

6  
7  
8           Signature: 

9  
10           By: Karol Canela

11  
12  
13           Title: Legal administrator

# EXHIBIT A

**BILL OF SALE AND ASSIGNMENT**  
**Costco Fresh Flow Accounts**

THIS BILL OF SALE AND ASSIGNMENT dated July 21, 2023, is by Citibank, N.A., a national banking association organized under the laws of the United States, located at 5800 South Corporate Place, Sioux Falls, SD 57108 (the "Bank") to Cavalry SPV I, LLC, organized under the laws of Delaware, with its headquarters/principal place of business at 1 American Lane, Suite 220, Greenwich, CT 06831 ("Buyer").

For value received and subject to the terms and conditions of the Master Purchase and Sale Agreement dated December 29, 2022 and Addendum No. 1 dated December 29, 2022, between Buyer and the Bank (the "Agreement"), the Bank does hereby transfer, sell, assign, convey, grant, bargain, set over and deliver to Buyer, and to Buyer's successors and assigns, the Accounts described in Exhibit 1 to the Addendum and the final electronic file.

**Citibank, N.A.**

By: Brandy Reardon  
(Signature)

Name: Brandy Reardon

Title: Authorized Party

**Exhibit 1**

The individual Accounts transferred are described in the final electronic file and delivered by the Bank to Buyer, the same deemed attached hereto by this reference.

| Lot          | Sale ID        | # of Accounts | Sale Balance | Cut-Off Date |
|--------------|----------------|---------------|--------------|--------------|
| Costco Fresh | 071323CV1CC1FM |               |              | 7/13/2023    |

Purchase Date:7/21/2023

1271

Data Excerpt from Exhibit 1\*\*

| Field Name                     | Data Provided     |
|--------------------------------|-------------------|
| ACCOUNT NUMBER                 | 5117              |
| SALE AMOUNT                    | \$7,591.45        |
| ACCOUNT OPEN DATE              | 28-May-22         |
| CHARGE OFF DATE                | 13-Jun-23         |
| LAST PAYMENT DATE              | 31-Oct-22         |
| CONSUMER FIRST AND MIDDLE NAME | AGUSTIN           |
| CONSUMER LAST NAME             | GUEVARA           |
| CONSUMER RESIDENCE ADDRESS 1   | 1228 N BERENDO ST |
| CONSUMER RESIDENCE ADDRESS 2   | APT D             |
| CONSUMER RESIDENCE CITY        | LOS ANGELES       |
| CONSUMER STATE                 | CA                |
| CONSUMER ZIP CODE              | 900291641         |
| CONSUMER SSN OR SIN*           |                   |

\*Data displayed has been redacted for consumer privacy

\*\*The data contained in this document was extracted from the electronic records transmitted by the seller concerning the referenced account

# EXHIBIT B

# Costco Anywhere Visa® Card by Citi



AGUSTIN GUEVARA

Member Since 2022 Account number ending in: 5117

Billing Period: 10/14/22-11/11/22

www.citicards.com

Customer Service 1-855-378-6467

TTY: 711

PO Box 790046 ST. LOUIS, MO 63179-0046

## NOVEMBER STATEMENT

Minimum payment due: **\$166.49**

New balance as of 11/11/22: **\$6,544.85**

Payment due date: **12/09/22**

See the last page of this statement for important information about how to avoid paying interest on purchases.

**Late Payment Warning:** If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

**Minimum payment warning:** If you make only the minimum payment each period, you will pay more in interest, and it will take you longer to pay off your balance. For example:

| If you make no additional charges using this card and each month you pay... | You will pay off the balance shown on the statement in about... | And you will end up paying an estimated total of... |
|-----------------------------------------------------------------------------|-----------------------------------------------------------------|-----------------------------------------------------|
| Only the minimum payment                                                    | 17 years                                                        | \$15,089                                            |
| \$240                                                                       | 3 years                                                         | \$8,640<br>(Savings=\$6,449)                        |

For information about credit counseling services, call 1-877-337-8187.

## Account Summary

|                    |                   |
|--------------------|-------------------|
| Previous balance   | \$7,531.49        |
| Payments           | -\$1,681.49       |
| Credits            | -\$0.00           |
| Purchases          | +\$593.36         |
| Cash advances      | +\$0.00           |
| Fees               | +\$0.00           |
| Interest           | +\$101.49         |
| <b>New balance</b> | <b>\$6,544.85</b> |

## Credit Limit

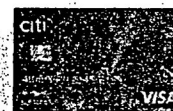
|                                    |              |
|------------------------------------|--------------|
| Credit Limit                       | \$7,140      |
| Includes \$0.00 cash advance limit |              |
| <b>Available Credit Limit</b>      | <b>\$595</b> |

## Costco Cash Rewards Summary

as of 11/11/22

**\$167.99**

» See page 3 for more information about your rewards



For Payments, send check to: Citi Cards, PO BOX 78019, Phoenix, AZ, 85062-8019

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:  
Text 'App15' to MyCiti (692484)  
or go to your device's app store.  
Or visit [www.citicards.com](http://www.citicards.com)

|                     |                   |
|---------------------|-------------------|
| Minimum payment due | <b>\$166.49</b>   |
| New balance         | <b>\$6,544.85</b> |
| Payment due date    | <b>12/09/22</b>   |

## Amount enclosed:

Account number ending in 5117  
Please make check payable to Citi Cards.

000000 NC 00 A 0

AGUSTIN GUEVARA  
1228 N BERENDO ST  
APT D  
LOS ANGELES CA 90029-1641

Citi Cards  
PO BOX 78019  
Phoenix, AZ 85062-8019

AGUSTIN GUEVARA

TTY:711

**CARDHOLDER SUMMARY**

AGUSTIN GUEVARA

Card ending in 5117

New Charges

\$593.36

**ACCOUNT SUMMARY**

| Sale Date                                | Post Date | Description               | Amount      |
|------------------------------------------|-----------|---------------------------|-------------|
| <b>Payments, Credits and Adjustments</b> |           |                           |             |
| 10/15                                    |           | ONLINE PAYMENT, THANK YOU | -\$150.00   |
| 10/15                                    |           | ONLINE PAYMENT, THANK YOU | -\$531.49   |
| 10/29                                    |           | ONLINE PAYMENT, THANK YOU | -\$1,000.00 |

**AGUSTIN GUEVARA****Standard Purchases**

|       |       |                        |                 |          |
|-------|-------|------------------------|-----------------|----------|
| 10/15 | 10/15 | STOOPS - INDIANAPOLIS  | INDIANAPOLIS IN | \$100.78 |
| 10/25 | 10/25 | PARIS FUEL 24 00001016 | PARIS IL        | \$140.00 |
| 11/02 | 11/02 | MAVERIK #387           | WINSLOW AZ      | \$55.00  |
| 11/04 | 11/04 | COSTCO GAS #0428       | ALHAMBRA CA     | \$60.00  |
| 11/04 | 11/04 | COSTCO WHSE #0428      | ALHAMBRA CA     | \$237.58 |

**Fees Charged**

|                                   |               |
|-----------------------------------|---------------|
| <b>TOTAL FEES FOR THIS PERIOD</b> | <b>\$0.00</b> |
|-----------------------------------|---------------|

**Interest Charged**

|                                       |                                    |                 |
|---------------------------------------|------------------------------------|-----------------|
| 11/11                                 | INTEREST CHARGED TO STANDARD PURCH | \$101.49        |
| <b>TOTAL INTEREST FOR THIS PERIOD</b> |                                    | <b>\$101.49</b> |

**2022 totals year-to-date**

|                                |          |
|--------------------------------|----------|
| Total fees charged in 2022     | \$0.00   |
| Total interest charged in 2022 | \$287.92 |

**Interest charge calculation**

Days in billing cycle: 29

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

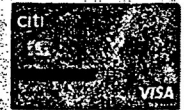
| Balance type     | Annual percentage rate (APR) | Balance subject to interest rate | Interest charge |
|------------------|------------------------------|----------------------------------|-----------------|
| <b>PURCHASES</b> |                              |                                  |                 |
| Standard Purch   | 18.99% (V)                   | \$6,726.10 (D)                   | \$101.49        |
| <b>ADVANCES</b>  |                              |                                  |                 |
| Standard Adv     | 28.99% (V)                   | \$0.00 (D)                       | \$0.00          |

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

**Account messages****Important changes are coming to some of your Card Benefits.**

Effective January 22, 2023, Extended Warranty coverage will be discontinued and will no longer be provided for purchases made on or after that date. Coverage for purchases made before that date will continue to be available in accordance with the current benefit terms. For additional information on your remaining benefits, please visit [citi.com/Costco](http://citi.com/Costco) or call 1-855-378-6467. For TTY, we accept 711 or other Relay Service.

Please be sure to pay on time. If you submit your payment by mail, we suggest you mail it no later than 12/02/2022 to allow enough time for regular mail to reach us.

**Costco Cash Rewards Summary****Total Costco Cash Rewards Balance:****\$167.99****Costco Cash Rewards Summary**

Costco Cash Rewards balance  
as of last statement ..... +\$152.03

Earned this period ..... +\$15.96

**Total Costco Cash Rewards Balance****Year To Date : \$167.99****Costco Cash Rewards Earned This Period**

4% on eligible gas worldwide, including  
gas at Costco<sup>1</sup> ..... +\$10.20

3% on restaurants ..... +\$0.00

3% on eligible travel worldwide ..... +\$0.00

2% on Costco and  
Costco.com ..... +\$4.75

1% on all other  
purchases ..... +\$1.01

**Total Earned: \$15.96**

» Visit [citi.com/Costco](http://citi.com/Costco)  
for more information

<sup>1</sup> Up to \$7,000 per year in purchases, then  
1% cash back



---

**www.citicards.com**

**Customer Service 1-855-378-6467**  
**TTY:711**

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**AGUSTIN GUEVARA**

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# EXHIBIT C

# Costco Anywhere Visa® Card by Citi



AGUSTIN GUEVARA

Member Since 2022 Account number ending in: 5117

Billing Period: 05/12/23-06/13/23

www.citicards.com

Customer Service 1-855-378-6467

TTY: 711

PO Box 790046 ST. LOUIS, MO 63179-0046

## JUNE STATEMENT

Minimum payment due: **\$7,591.45**

New balance as of 06/13/23: **\$7,591.45**

Payment due date: **06/13/23**

See the last page of this statement for important information about how to avoid paying interest on purchases.

**Late Payment Warning:** If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

**Minimum payment warning:** If you make only the minimum payment each period, you will pay more in interest, and it will take you longer to pay off your balance. For example:

| If you make no additional charges using this card and each month you pay... | You will pay off the balance shown on the statement in about... | And you will end up paying an estimated total of... |
|-----------------------------------------------------------------------------|-----------------------------------------------------------------|-----------------------------------------------------|
| Only the minimum payment                                                    | 1 months                                                        | \$7,591                                             |

For information about credit counseling services, call 1-877-337-8188.

## Account Summary

|                  |            |
|------------------|------------|
| Previous balance | \$7,453.84 |
| Payments         | -\$0.00    |
| Credits          | -\$0.00    |
| Purchases        | +\$0.00    |
| Cash advances    | +\$0.00    |
| Fees             | +\$0.00    |
| Interest         | +\$137.61  |

**New balance** **\$7,591.45**

## Credit Limit

Credit Limit **\$7,140**

Includes \$0.00 cash advance limit

For Payments, send check to: Citi Cards, PO BOX 78019, Phoenix, AZ, 85062-8019

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:  
Text 'App15' to MyCiti (692484)  
or go to your device's app store.  
Or visit [www.citicards.com](http://www.citicards.com)

Minimum payment due **\$7,591.45**

New balance **\$7,591.45**

Payment due date **06/13/23**

Amount enclosed:

Account number ending in 5117

Please make check payable to Citi Cards.

000000 NC 32 A 0

AGUSTIN GUEVARA  
1228 N BERENDO ST  
APT D  
LOS ANGELES CA 90029-1641

Citi Cards  
PO BOX 78019  
Phoenix, AZ 85062-8019

AGUSTIN GUEVARA

TTY:711

**CARDHOLDER SUMMARY**

AGUSTIN GUEVARA

Card ending in 5117

New Charges

\$0.00

**ACCOUNT SUMMARY**

| Sale<br>Date | Post<br>Date | Description | Amount |
|--------------|--------------|-------------|--------|
|--------------|--------------|-------------|--------|

AGUSTIN GUEVARA

No Activity

Fees Charged

|                            |        |
|----------------------------|--------|
| TOTAL FEES FOR THIS PERIOD | \$0.00 |
|----------------------------|--------|

Interest Charged

|       |                                    |          |
|-------|------------------------------------|----------|
| 06/13 | INTEREST CHARGED TO STANDARD PURCH | \$137.61 |
|-------|------------------------------------|----------|

|                                |          |
|--------------------------------|----------|
| TOTAL INTEREST FOR THIS PERIOD | \$137.61 |
|--------------------------------|----------|

**2023 totals year-to-date**

|                            |          |
|----------------------------|----------|
| Total fees charged in 2023 | \$200.00 |
|----------------------------|----------|

|                                |          |
|--------------------------------|----------|
| Total interest charged in 2023 | \$707.75 |
|--------------------------------|----------|

**Interest charge calculation**

Days in billing cycle: 33

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

| Balance type   | Annual percentage<br>rate (APR) | Balance subject<br>to interest rate | Interest charge |
|----------------|---------------------------------|-------------------------------------|-----------------|
| PURCHASES      |                                 |                                     |                 |
| Standard Purch | 20.24% (V)                      | \$7,520.35 (D)                      | \$137.61        |
| ADVANCES       |                                 |                                     |                 |
| Standard Adv   | 29.99% (V)                      | \$0.00 (D)                          | \$0.00          |

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

**Account messages**

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment was credited as of the date of receipt, but will not be reflected until your next statement.

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|                                                                      |              |
|----------------------------------------------------------------------|--------------|
| PLAINTIFF/PETITIONER: Cavalry SPV I LLC as assignee of Citibank N.A. | CASE NUMBER: |
| DEFENDANT/RESPONDENT: AGUSTIN GUEVARA an Individual                  | 24CHLC00298  |

(5) ☒ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

c. ☐ **by mail and acknowledgement of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,

(1) on (date):

(2) from (city):

(3) ☐ with two copies of the *Notice and Acknowledgement of Receipt* and a postage-paid return envelope addressed to me. (*Attach completed Notice and Acknowledgement of Receipt.*) (Code Civ. Proc., § 415.30)

(4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40)

d. ☐ **by other means** (*specify means of service and authorizing code section*):

☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:

a. ☒ as an individual defendant.

b. ☐ as the person sued under the fictitious name of (*specify*):

c. ☐ as occupant.

d. ☐ On behalf of (*specify*)

under the following Code of Civil Procedure section:

☐ 416.10 (corporation)

☐ 415.95 (business organization, form unknown)

☐ 416.20 (defunct corporation)

☐ 416.60 (minor)

☐ 416.30 (joint stock company/association)

☐ 416.70 (ward or conservatee)

☐ 416.40 (association or partnership)

☐ 416.90 (authorized person)

☐ 416.50 (public entity)

☐ 415.46 (occupant)

☐ other:

7. **Person who served papers**

a. Name: **Jooyeon Liepe**

b. Address: **3680 Wilshire Blvd., P04-1508, Los Angeles, CA 90010**

c. Telephone number: **213-318-1173**

d. The fee for service was: **\$ 73.55**

e. I am:

(1) ☐ not a registered California process server.

(2) ☐ exempt from registration under Business and Professions Code section 22350(b).

(3) ☒ registered California process server:

(i) ☐ owner ☐ employee ☒ independent contractor.

For: **ABC Legal Services, LLC**

(ii) ☒ Registration No.: **2021239352**

Registration #: **6779**

(iii) ☒ County: **Los Angeles County Clerk**

County: **Los Angeles**

BY FAX



8. ☒ I **declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

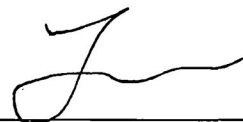
or

9. ☐ I am a **California sheriff or marshal** and I **certify** that the foregoing is true and correct.

Date: 01/21/2024

Jooyeon Liepe

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)



(SIGNATURE)







